

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

RAE-ANN STANBERRY,

Plaintiff,

Against

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SALVINO G. GIACCONE Tax No.: 971955, and
"JOHN and JANE DOE" OFFICERS OF THE
114TH PRECINCT (1-10),

Defendants,

Index No.

SUMMONS

PLAINTIFF RESIDES AT:

38-59 11th St., Unit 2004
Long Island City, NY 11101

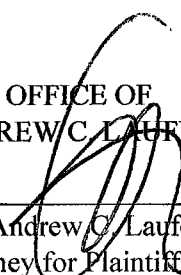
To the above-named defendants:

YOU ARE HEREBY SUMMONED, to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York, and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue is the place of incident.

DATED: New York, New York
December 7, 2022

LAW OFFICE OF
ANDREW C. LAUFER, PLLC

By:  Andrew C. Laufer, Esq.
Attorney for Plaintiff

RAE-ANN STANBERRY
264 W. 40th Street, Suite 604
New York, NY 10018
212-422-1020

Defendant's Address

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007
CLAIM NO.: 2022PI026724

NEW YORK CITY POLICE DEPT.
C/O THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPT.
OFFICER SALVINO G. GIACCONE (TAX NO.: 971955)
114TH PRECINCT
34-16 Astoria Blvd.
Queens, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

RAE-ANN STANBERRY,

Index No.

Plaintiff,

VERIFIED COMPLAINT

Against

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SALVINO G. GIACCONE Tax No.: 971955, and
"JOHN and JANE DOE" OFFICERS OF THE
114TH PRECINCT (1-10),

Defendants,

Plaintiff, by and through her attorneys, Law Office of Andrew C. Laufer, PLLC complaining of
the defendants herein, upon information and belief, respectfully shows to this court, and alleges as
follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Queens, City and State of New York.
2. The claim arose on or about the 10th day of September, 2022 at approximately 10:00 A.M. at New York Presbyterian Queens Hospital located at 56-45 Main Street, Queens, NY 11355. At the aforesaid time and place, two NEW YORK CITY POLICE OFFICER SALVINO G. GIACCONE Tax N. 971955, and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10), came to plaintiff's hospital room using physical force that was unnecessary and unjustified, handcuffed plaintiff and shackled her to the bed, without probable cause or reasonable suspicion to believe that claimant committed or was about to commit a crime or criminal violation. The officer returned after two hours and stated she had a warrant from 2008.
3. POLICE OFFICER SALVINO G. GIACCONE Tax, No.: 971955, and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10), then transferred plaintiff from the hospital to the 114th Precinct where she sat in jail for two days. No fingerprints were ever taken of her by the police and she did not see any judge while she was in custody. ACS was called to take her two sons away while she

was transferred to the precinct. The officers then searched plaintiff without plaintiff's consent and without reasonable suspicion, probable cause or other justification.

4. The officers also caused plaintiff to be maliciously prosecuted, causing her to be charged with crimes of which she was innocent, and of which the officers knew they would not prevail at trial because the charges were false. Plaintiff was incarcerated for a period of approximately 2 days. Thereafter, on or about September 12, 2022 the plaintiff was released from custody.

5. That an Examination of the plaintiff, then claimant, was held by the defendants on November 14, 2022 pursuant to Municipal law 50H within ninety (90) days after filing of the aforementioned Notice of Claim.

6. More than thirty (30) days have elapsed since the service of said Notice of Claim upon defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, and they have failed, neglected and/or refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

7. This action has been commenced within one year and ninety (90) days after the within cause of action arose including, but not limited to, any equitable tolling of the statutory time period.

8. That at all times hereinafter mentioned defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

9. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

10. OFFICER SALVINO G. GIACCONE, Tax No. 971955 of the 114th Precinct, and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10) were and still are employed with defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

11. OFFICER SALVINO G. GIACCONE, Tax No. 971955 of the 114th Precinct, and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10) were acting in their individual and official capacity as employees of defendants, THE CITY OF NEW YORK (CITY) and NEW YORK CITY

POLICE DEPARTMENT.

12. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law and Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS COMMON TO ALL CAUSES OF ACTION

13. That on or about September 10, 2022 at approximately 10:00 A.M., plaintiff, RAE-ANN STANBERRY, was forceable removed from her hospital bed and room by NEW YORK CITY POLICE OFFICER SALVINO G. GIACCONE, Tax No. 971955 of the 114th Precinct and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10) using physical force that was unnecessary and unjustified, handcuffed and shackled, without probable cause or reasonable suspicion to believe that claimant committed or was about to commit a crime or criminal violation. The officers returned after two hours and stated she had a warrant from 2008. She was then transferred from the hospital to the 114th Precinct where she sat in jail for two days. No fingerprints were ever taken of her by the police and she did not see any judge. ACS was called to take her two sons away while she was transferred to the precinct.

14. That on or about September 10, 2022, the officers also caused plaintiff to be maliciously prosecuted, causing her to be charged with crimes of which she was innocent, and of which the officer knew they would not prevail at trial because the charges were false. Plaintiff was incarcerated for a period of approximately 2 days. ACS did not take children nor open a case against her.

15. Thereafter, on or about September 12, 2022 the plaintiff was released from custody.

16. OFFICER SALVINO G. GIACCONE, Tax No. 971955 of the 114th Precinct, and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10), under color of State Law, subjected plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving plaintiff of her rights, privileges and immunities secured by the First, Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of her person, including excessive use of force; (b) freedom from arrest without probable cause (c) freedom from false imprisonment, meaning wrongful detention without good faith, reasonable suspicion or legal justification of which plaintiff was aware and did not consent; (d)

freedom from the lodging of false charges against her by police; (e) freedom from abuse of process; and (f) the enjoyment of equal protection, privileged and immunities under the law.

FIRST CAUSE OF ACTION FOR VIOLATIONS OF PLAINTIFF'S CONSTITUTION RIGHTS UNDER THE FIRST, FOURTH, FIFTH, SIXTH, EIGHTH, FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION, NEW YORK CITY AND NEW YORK STATE LAW PREDICATED UPON FALSE ARREST AND IMPRISONMENT

17. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

18. That on or about September 10, 2022 at approximately 10 A.M. defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to OFFICER SALVINO G. GIACCONE, Tax No. 971955 of the 114th Precinct and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10), wrongfully and falsely arrested, imprisoned and detained plaintiff without any right or justifiable grounds therefore.

19. That on or about September 10, 2022 at approximately 10 A.M. defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, its agents, servants, and employees including but not limited to officer SALVINO G. GIACCONE, Tax No. 971955 of the 114th Precinct and "JOHN and JANE DOE" OFFICERS OF THE 114TH PRECINCT (1-10), jointly and severally in their capacity as police officers, wrongfully handcuffed, and seized the plaintiff about her person, causing her physical pain and mental suffering. At no time did defendants have legal cause to handcuff, seize or touch plaintiff or did plaintiff consent to this illegal touching nor was privileged by law.

20. That on or about September 10, 2022 defendants, jointly and severally without any warrant, order or other legal process and without legal right, wrongfully and unlawfully arrested plaintiff, restrained her and her liberty.

21. The unlawful conduct of defendants was motivated and instigated by other than lawful reasons and without probable cause.

22. That the said arrest, detention and imprisonment was caused by the CITY, its agents, servants and

employees, including but not limited to defendant OFFICER SALVINO G. GIACCONE, Tax No. 971955 of the 114th Precinct, and “JOHN and JANE DOE” OFFICERS OF THE 114TH PRECINCT (1-10) without a warrant and without any reasonable cause or belief that plaintiff was in fact guilty of any crime.

23. That the CITY, its agents, servants and employees, as set forth above, intended to confine plaintiff; that plaintiff was conscious of the confinement; that plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

24. As a result of the aforesaid actions, including the arrest and imprisonment of plaintiff without probable cause, defendants deprived plaintiff of the rights, privileges and immunities secured by the Constitution and Laws of the United States of America and the Fourteenth Amendment.

25. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from unreasonable search and seizures secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

26. As a result of the forementioned actions, defendants deprived plaintiff of her right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

27. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for said deliberate indifference to plaintiff's rights.

28. That by reason of the false arrest, imprisonment and detention of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained and was greatly injured in her credit and circumstances and was prevented and hindered from performing and transacting her necessary affairs and was caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

29. The aforementioned described constitutional violations are all actionable under and pursuant to 42 U.S.C. Section 1983, 1988 and New York City and New York State Law.

**SECOND CAUSE OF ACTION FOR VIOLATIONS OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH FIFTH, SIXTH, EIGHT, FOURTEETH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON ASSAULT,
BATTERY AND USE OF EXCESSIVE FORCE UPON PLAINTIFF**

30. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

31. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge consent and cooperation and under the supervisory authority of defendants CITY and the NEW YORK CITY POLICE DEPARTMENT.

32. Defendants CITY and NEW YORK CITY POLICE DEPARTMENT, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or alleged acts to continued.

33. Defendants arrested and detained plaintiff in the absence of any evidence of criminal wrongdoing notwithstanding their knowledge that said arrest and detention would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

34. At all times mentioned herein said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

35. On or about September 10, 2022, defendants did seize, search the person of the plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the plaintiff during the arrest process in an unlawful and excessive manner.

36. The plaintiff was falsely arrested, unlawfully detained and suffered great injury without the defendants processing probable cause to do so.

37. The above actions of defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution.

a. Freedom from illegal search and seizure

b. Freedom from arrest

c. Freedom from unlawful imprisonment.

38. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights.

39. Defendant CITY has grossly and negligently failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when the police officers are not in possession of a court authorized arrest warrant and where an individual especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

40. The direct proximate results of the defendants' acts, are that plaintiff suffered severe and permanent injuries of a psychological and physical nature. She was forced to endure pain and suffering to her detriment.

**THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING,
RETENTION AND SUPERVISION**

41. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

42. That the aforesaid action and resulting injuries to plaintiff were due to the negligence of the defendants in the hiring, retention and training of its employees, causing the plaintiff to be falsely arrested and imprisoned without justifiable reason or ground thereof and in all ways being grossly negligent and engaging in wanton and reckless conduct.

FOURTH CAUSE OF ACTION – MONELL VIOLATION

43. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

44. That plaintiff was deprived of her rights, privileges and immunities secured by the Constitution of the United States of America and the State of New York, and her rights pursuant to 42 USC sec. 1983 by those who under color of a statute or regulation of a state, caused plaintiff to be so deprived.

45. That the aforesaid actions by the defendants, their agents, servants and/or employees were done pursuant to an official municipal policy or custom of the city, which policy involved the deliberate indifference to the health, safety, and welfare of the plaintiff, and for the purpose of thwarting the fair administration of justice in violation of the Fourth and Fifth Amendments to the United States Constitution.

46. That defendants herein, their agents, servants and/or employees motivated in part by racial and/or ethnic animus, conspired to deprive plaintiff of her federal civil and constitution rights, in violation of 432 USC 1985.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for plaintiff's pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees and together with costs and disbursements.

DATED: New York, New York
December 7, 2022

LAW OFFICE OF
ANDREW C. LAUFER, PLLC

By: Andrew C. Laufer, Esq.
Attorney for Plaintiff
RAE-ANN STANBERRY
264 West 40th Street, Suite 604
New York, NY 10018
212-422-1020

ATTORNEY'S VERIFICATION

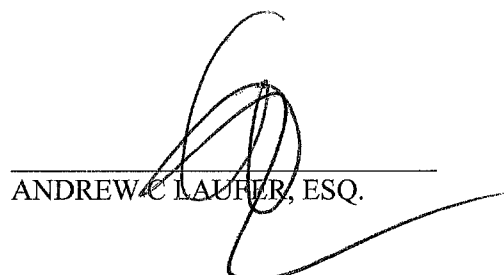
ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that same is true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

2. That the source of my information and knowledge are records and investigation reports maintained within the file.

3. That the reason this verification is made by your affirmant, and not by the plaintiff is that plaintiff resides outside the County in which your affirmant maintains his office.

DATED: New York, New York
December 7, 2022



ANDREW C. LAUFER, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index:

Year:

RAE-ANN STANBERRY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
SALVINO G. GIACCONE TAX NO. 971955, and
"JOHN AND JANE DOE" OFFICERS OF THE
114TH PRECINCT

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer